Constitutional Law - Lecture Notes

Article 19(1)(g): freedom of occupation, trade & business, reasonable restrictions, and the case law behind them

How to read these notes: regular text = lecture content | *italic purple = the professor's informal remarks* | **[added]** = clarification added by the note-taker, not said in the recording | green boxes = questions asked in class, answered.

At a glance. The professor said he would finish Article 19 and take up Article 20. The recording stays within Article 19(1)(g) (and ends on a religion-versus-noise discussion), so **Article 20 is not covered here**. The lecture moves from the scope of 19(1)(g), to education as an occupation, closing a business, street vending, the test for reasonable restrictions, and then a run of cases on cow slaughter, meat and liquor bans, and religious practice versus public order.



1 Opening correction: Hanif Quareshi (cow slaughter, "milch animals")

Yesterday's first cow-slaughter case, **Mohd. Hanif Quareshi v. State of Bihar**, was taught in a hurry. The professor said he had left out one point: the Supreme Court's "milch animals" reasoning, i.e. cows that no longer give milk, or bulls no longer fit for work, may be slaughtered. He asked the class to Google whether the case really says this.

Q. Is it like that in the first case (Quareshi)?

A. Yes, in substance. Quareshi drew its line at **usefulness**:

- **Upheld:** total ban on slaughter of cows of all ages and calves of cows and she-buffaloes.
- **Upheld:** ban on slaughter of she-buffaloes, breeding bulls and working bullocks **while they remain useful** for milk, breeding or draught.
- **Struck down as unreasonable:** a total ban on slaughter of animals **after they cease to be useful**. So a cow that no longer gives milk, or a bull unfit for work, could be slaughtered.
- **Caution:** the later seven-judge Gujarat case (Section 8) effectively diluted this "aged cattle" view and upheld a total ban, so Quareshi is no longer the last word.

Prof. said (informal remarks)

- *The student's half-answer ("animals that were... allowed...") became a joke: **useless old things can be killed**, so "in five or six years you people will kill me too!" (a memory hook: the old test was usefulness).*
- *Teaching in a hurry means some things get messed up. What a teacher teaches first stays in memory for ever, and later additions raise doubts "a hundred times", so corrections matter. Every night, before sleeping, he recalls what he taught that day **and what he left out**.*
- *Academic Committee meetings ate class time; he said he would delete the Academic Committee from his committees "so neither a holiday nor a problem".*

2 Article 19: who gets it, and which freedoms

- **Article 19 is available only to citizens of India.** A student asked whether *all* provisions under Article 19 are citizen-only; the professor said **yes**. Today's discussion is only 19(1)(g).
- **Not all fundamental rights are citizen-only.** Article 14 and Article 21 are not limited to citizens. A student was praised for this, and the professor mocked the idea that "Article 14 is only for citizens, Article 21 is only for citizens".

Clause	Freedom	Mentioned in the lecture?
19(1)(a)	Speech and expression	Named by a student
19(1)(b)	Assemble peaceably and without arms **[added]**	Not mentioned in the recording
19(1)(c)	Form associations or unions **[added: + cooperatives, 2011]**	Named by a student
19(1)(d)	Move freely throughout the territory of India **[added]**	Cited by the letter "D" (recording garbled)
19(1)(e)	Reside and settle in any part of the territory of India	Read out by a student
19(1)(g)	**Practise any profession, or carry on any occupation, trade or business**	**Today's focus**; citizens only

[added] A student mentioned "1(f)": the property freedom 19(1)(f) no longer exists; it was repealed by the 44th Amendment (1978).

Q. "Freedom of what?" And "freedom of cow slaughter?" (the professor's probing of the student reading the six points)

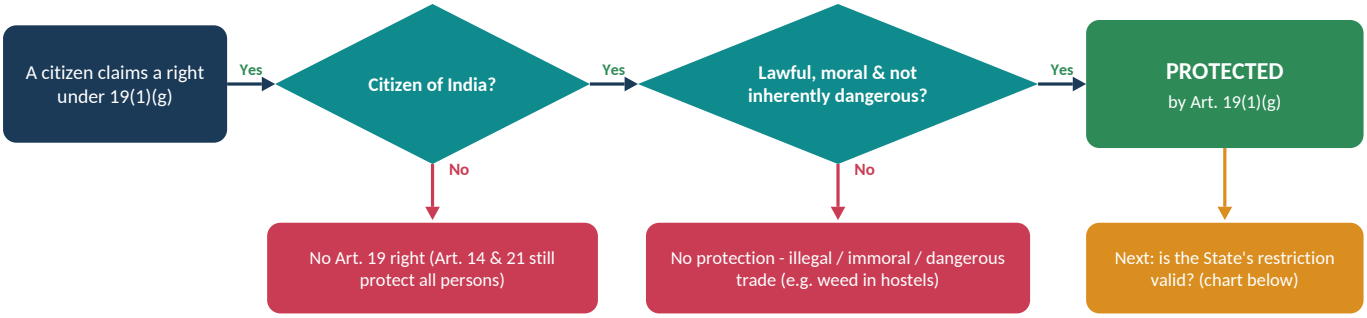
A. Article 19 gives **six freedoms** (table above); the one under study is the freedom of **occupation, trade or business**. It is **not** a "freedom of cow slaughter": the student corrected himself, and Quareshi / the Gujarat case treat cow-slaughter bans as **reasonable restrictions** on trade.

3 Scope of Article 19(1)(g)

- **Citizens only.**
- **Lawful professions** only: medicine, law, teaching, accountancy and so on. **Unlawful** professions are not covered.
- Includes the right to **establish and administer educational institutions** (Section 4).
- Includes the right to **close down a business** (Section 5).
- **Street vending** is recognised as a legitimate occupation (Section 6).
- **No protection** for illegal, immoral or inherently dangerous activities, even for a citizen. Likewise no right to a **monopoly**.

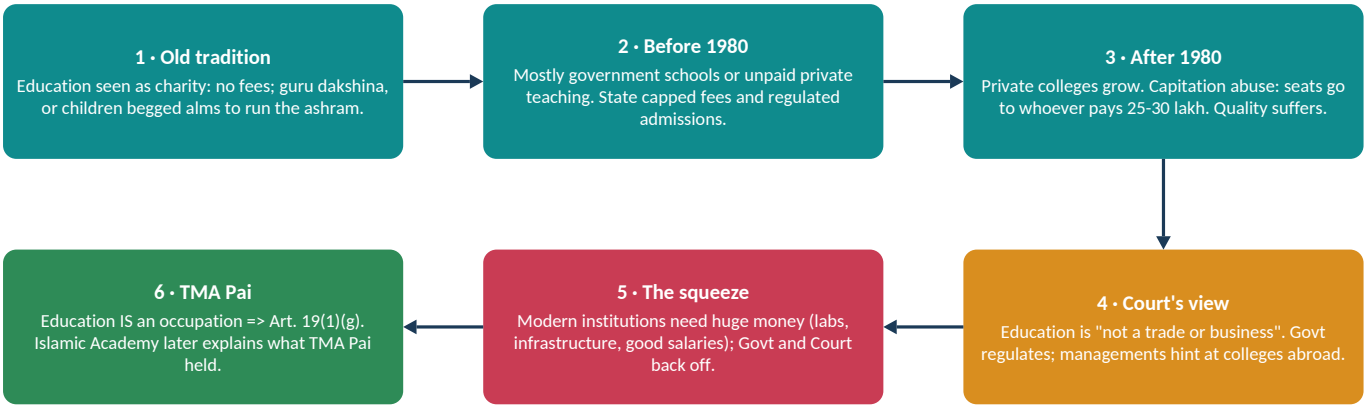
Prof. said (informal remarks)

- *You cannot claim a right to bring **ganja** into the hostels. (English word, per the class: **"weed"**.) "If I ask now, they will tell the shop, the mobile number, everything. Beware!"*
- *On monopoly: he cited the BCCI's hold on cricket (mentioning the Zee Telefilms case); the Court did not break it up, but nothing stops a **rival federation** from forming its own team and becoming more popular.*



4 Education as an occupation: TMA Pai and Islamic Academy

Under 19(1)(g) there was a long-standing case on the right to establish and administer educational institutions. The professor said he would not teach much of it, but it is very important. **TMA Pai** was so hard to read that a **new Constitution Bench** had to sit just to say what its ratio is: **Islamic Academy of Education v. State of Karnataka**.



Why it mattered. Earlier, education was not treated as a business, and the State could cap fees and control admissions. Once private colleges multiplied, money decided admission (an engineering college with 25,000 applicants could sell seats for 25-30 lakh; the same in medical colleges), and people who paid might be poor students. Yet modern institutions need large sums for infrastructure, labs and good teacher salaries, and teachers work well only when paid well. Managements told the government, off the record, that they would open engineering and medical colleges in nearby countries (Maldives, Sri Lanka, Nepal, Bhutan) and Indian students would pay fees there. The Government grew nervous and the Court checked itself.

- **Holding in TMA Pai:** for the first time the Supreme Court said **education is also an occupation**. The State can therefore impose only the restrictions it could on any occupation: citizens only; **only reasonable restrictions**; **only by law**; **only in the public interest**; otherwise **quashed**.
- **Where to read:** TMA Pai is taught lightly because "when the Supreme Court itself did not understand it, what will you and I understand?" Read it **through Islamic Academy. [added]** TMA Pai was decided in 2002 by an 11-judge bench; the recording says "eleven cases", most likely "eleven judges".

Prof. said (informal remarks)

- *Today's fees are ~4 lakh; "better than them were we people who studied for 70-75 rupees". Old India taught without fees; his father was an **unpaid village teacher** and the only educated man there, who wanted the **panchang** (when is Ekadashi, Holi, Diwali) to stay readable, so he deliberately taught a few people.*
- *You learn from teachers, but **even more from friends**, provided you make good friends ("not evening friends").*

5 Right to close a business: Excel Wear (1978)

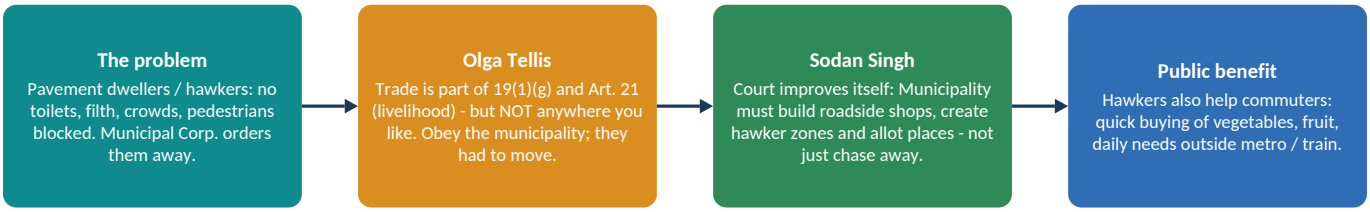
- Old thinking: you may **open** a business but not **close** it. That was settled long ago (professor: "I think decided in 1978"): **the right to carry on business includes the right not to carry it on**.
- If there is no profit you will not keep paying salaries from your own pocket. Compelling an employer to continue an **unviable or unwanted business is unreasonable**.
- The provision failed because it gave **uncontrolled and arbitrary power** to the government: **no obligation to record reasons**, **no time-bound decision**, and **no appeal or revisional remedy**.

Prof. said (informal remarks)

- *A labour-law case; "a labour law teacher will teach it, a good teacher will explain it. That's why we teach less of it."*

6 Street vending: Olga Tellis and Sodan Singh

The professor mentioned two cases, the **Bombay Hawkers' case** and **Olga Tellis**, and then discussed Olga Tellis and Sodan Singh. Pavement dwellers and vendors in Bombay created nuisance (no toilets, filth, crowds, pedestrians forced off the path), so the Municipal Corporation asked them to move. In **Olga Tellis** the Court said trade or business is part of **19(1)(g) and also Article 21** (if selling stops, income stops and life is affected), but you may **not sell wherever you like**; you must obey the municipality.



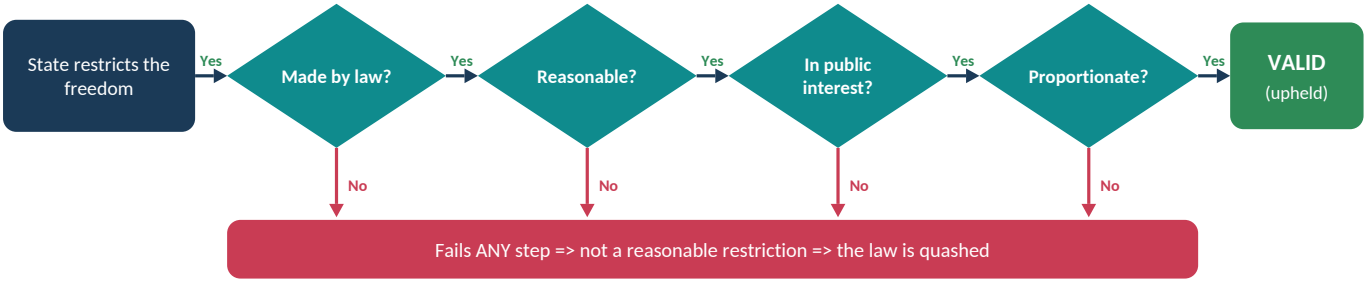
In **Sodan Singh** (immediately after) the Court corrected itself: the municipality must not merely chase vendors away; it should **build roadside shops, create hawkers' zones and allot places** so business can run without trouble for the public. Hawkers benefit **commuters** too: e.g. a working woman of 35-40 stepping out of the metro can quickly buy vegetables, fruit and daily needs instead of a separate, costly, time-consuming market trip. Professor: Sodan Singh is "very, very important".

Prof. said (informal remarks)

- *On pavement hazards he recalled the **Salman Khan** case (a vehicle driven over people on a pavement), and the class chipped in with its details.*
- *Even hoisting the **national flag** has a proper method and place; you cannot wave a flag wherever you like. Rights have a **place and manner**, not only a yes/no.*

7 Valid restriction on 19(1)(g): the four-part test and Chintaman Rao

For a restriction on 19(1)(g) to be valid it must be **(i) imposed by law**, **(ii) reasonable**, **(iii) in the interest of the general public** and **(iv) proportionate** (proportionality "has started coming now"). The power comes from **Article 19(6)**.



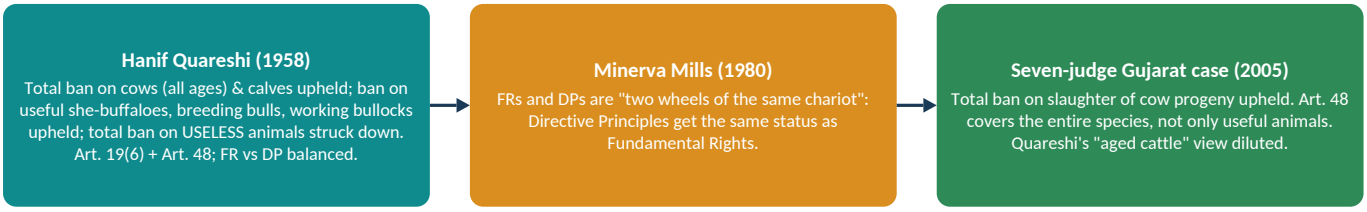
Chintaman Rao (the very first and important case on this): **bidi manufacture was completely banned during the agricultural (harvest) season** because labourers were unavailable for harvesting. Because the ban was **total**, it was held **not a reasonable restriction**; a **partial** restriction would have been fine. "Reasonable restriction" implies **intelligent care and deliberation**; the law must **strike a proper balance between the freedom guaranteed and the social control permitted**. Farmers need labour, so bidi makers' business should not be shut completely: **balancing**.

Prof. said (informal remarks)

- *"Read it, you will enjoy it." If you don't read now, "going ahead in life you will never understand things"; whatever profession you enter, such problems arise. (Banter: students said they smoke cigarettes, not bidis.)*

8 Animal, meat and liquor bans: how the Court reasoned

Evolution of the cow-slaughter law:



- **Quareshi's reasoning:** the restrictions were justified under **Article 19(6)** in the interest of the general public and to further **Article 48**. **Cow sacrifice on Bakrid is not an essential religious practice**, because there are alternatives. The Court applied a **balancing test** between Fundamental Rights and Directive Principles (in between, earlier cases had put FRs above DPs).
- **Seven-judge Gujarat case:** question was whether a total ban on slaughter of cow progeny violates 19(1)(g). The ban was held **constitutional**. "Calves and other milch and draught cattle" in Article 48 covers the **entire species (cow and progeny)**, not merely animals currently useful. **Scientific advances and changing economic conditions** justified the total ban, and it is reasonable because **butchers remain free to trade in other animals** (goats, sheep etc.). **[added]** Full title: State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat (2005); identified from the "seven judges / Gujarat" clue. Professor: "You will have to remember this case."

Case / issue	Facts	Held and reasoning
Paryushan closure (Moti Kureshi Jamat, 2008) **[added]** Hinsa Virodhak Sangh v. Mirzapur Moti Kuresh Jamat	Ahmedabad Municipal Corporation closed municipal slaughterhouses for **9 days** during the Jain festival of Paryushan (out of respect for **ahimsa**). Meat traders challenged it under 19(1)(g).	**9-day closure upheld** as reasonable. India is **multi-cultural and pluralistic**; a few days' restriction out of respect for a sizeable community's sentiment, followed for years, is not an unreasonable deprivation. Non-vegetarians can stay vegetarian briefly; impact on traders is limited. Spirit of **tolerance and communal harmony**.
Mumbai follow-up	Mumbai closed slaughterhouses for more days; High Court gave interim relief to reduce them; the Supreme Court refused to interfere.	A ban "cannot be forced down somebody's throat"; **tolerance and accommodation must prevail**. Later Jain requests for longer closure were declined by the Bombay High Court (no statutory mandate for multi-day closure). On the 2015 Maharashtra meat-sale ban days: **one or two days likely acceptable, longer not**.
Bihar liquor ban (case name not given)	Complete ban on manufacture, sale and possession of liquor; social objective.	Same principles as above, "nothing new"; the professor asked students to read it.
Rishikesh, Haridwar, Muni Ki Reti (case name not given)	Holy cities where eggs, meat and fish were traditionally unavailable; later challenged. ("Ret" = sand; Muni Ki Reti is where sages did penance, now known for river rafting.)	A **complete restriction** on public dealing in non-vegetarian items, **including eggs**, was **not arbitrary**: as important Hindu pilgrimage centres, a clean, congenial, predominantly vegetarian atmosphere serves the larger public interest and matches the town's religious and cultural character; geography and culture justify it.

Prof. said (informal remarks)

- *Of the Rishikesh case: "I don't understand how it was decided." He added that he had asked a question on it in a past year.*
- *River rafting: "99% doesn't overturn". He was once selected by the Air Force for a **parachute-jumping course** (school in Agra) right after marriage, but in-law worries about accidents stopped him; he now feels scared even watching rafting at Haridwar / Rishikesh, yet tells students that life should have some adventure.*

9 Religion versus public order: Coimbatore village and loudspeakers

- **Coimbatore (Tamil Nadu) village:** as the Muslim population grew and the Hindu population fell, a council / assembly resolution banned temple bells and puja as "anti-Islamic". Villagers had to go to the **High Court**. Professor: India is a **plural society**; one person does puja, another offers namaz, Christians pray and read the Bible, and all must be accepted. **Task:** find the High Court decision.
- **Azaan (student's point):** the azaan is a call to prayer meant to be heard by all; in the Prophet's time loud-voiced companions gave it from the minaret; loudspeakers exist now because communities are bigger. Professor: that must be **respected and protected**.
- **Professor's limit: nobody can ban azaan**, but loudspeakers above the **prescribed scientific volume** are prohibited; **Article 25 is subject to other provisions of the Constitution**. A complete ban is not the answer; volume should be set so people who want to hear can, while those who do not are not disturbed: **counter-rights**. Same for Diwali crackers, temple bells and loudspeakers: noise pollution is not allowed; normal volume is.
- **Nuisance analogy (flour mill):** if the mill was there first, people who settle later cannot complain; if residents were there first and a mill opens later, it can be a nuisance. Applied: if Muslims lived there first, were the majority and nobody was disturbed, they should keep the right to broadcast prayer times; if the majority later shifts and violates the rights of earlier residents, the court must **balance both rights**. "Muslims have rights; nobody can violate them", and longstanding practices should also be protected.

Prof. said (informal remarks)

- *He pressed the student: "Voice goes up to 2 km. In 2 km do only Muslims live? Is there any place where within 25 km there are only Muslims?" (a point that exclusive areas are rare, so volume limits matter).*
- *The class mini-quiz: When did Islam originate? Student: **6th century**. **[added]** Strictly, the Prophet was born c. 570 CE and the revelation began in the early 7th century CE (c. 610 CE). "Was there a loudspeaker then?" **No.***

10 Questions asked in class: quick answers

Question from the lecture	Answer (per the lecture's context)
Does Quareshi allow slaughter of cows that give no milk / bulls unfit for work?	Yes: total ban on **useless** animals was struck down (Section 1). Later diluted by the seven-judge Gujarat case.
Which freedom is meant? Freedom of cow slaughter?	Freedom of **occupation, trade or business**, 19(1)(g). Not a freedom of cow slaughter.
Are all fundamental rights only for citizens?	**No.** Article 19 is citizen-only; Articles 14 and 21 are not.
Are all provisions of Article 19 citizen-only?	**Yes.**
What is "ganja" in English?	**Weed.**
Which case was decided to understand what TMA Pai says?	**Islamic Academy of Education v. State of Karnataka.**
Which other country lies next to Nepal (for foreign campuses)?	**Bhutan** (list given: Maldives, Sri Lanka, Nepal, Bhutan).
What is the boating-in-water activity at Muni Ki Reti? What is "ret"?	**River rafting.** "Ret" means **sand**.
What do Christians do (like namaz)?	They **pray / read the Bible**.
When did Islam originate? Was there a loudspeaker then?	Student: 6th century (see note in Section 9); **no** loudspeaker.

11 Case cheat-sheet (revision)

Case	Point to remember
Mohd. Hanif Quareshi v. State of Bihar (1958)	Total ban on cows/calves valid; ban on useful animals valid; total ban on useless animals invalid. Art. 19(6) + Art. 48. Bakrid cow sacrifice not essential.
Minerva Mills (1980)	Fundamental Rights and Directive Principles: two wheels of one chariot.
State of Gujarat v. Mirzapur Moti Kureshi (7 judges, 2005) **[added title]**	Total ban on cow progeny slaughter valid; Art. 48 covers whole species; Quareshi diluted.
Hinsa Virodhak Sangh v. Mirzapur Moti Kuresh Jamat (2008) **[added title]**	9-day Paryushan slaughterhouse closure in Ahmedabad upheld; tolerance and pluralism.
Chintaman Rao (1950) **[added year]**	Total bidi ban in harvest season unreasonable; balance freedom and social control.
Excel Wear (1978)	Right to carry on business includes right to close it; arbitrary government power failed.
Olga Tellis (1985) **[added year]**	Hawking is part of 19(1)(g) and Art. 21, but not anywhere; obey the municipality.
Sodan Singh (1989) **[added year]**	Municipality must create hawkers' zones and allot places; hawkers also serve commuters.
TMA Pai (2002) and **Islamic Academy** (2003) **[added years]**	Education is an occupation; Islamic Academy explains TMA Pai (new Constitution Bench).

12 To-do assigned in class

- Google the **Coimbatore village** High Court decision on the ban on puja / temple bells where Muslims were dominant. Case name was not given in the recording.
- Find and **circulate the loudspeaker / noise case** (Article 25 is subject to other provisions); the professor wants a **class presentation** when Article 21 or 25 is taught. **[added suggestion, verify]** a likely candidate is **Church of God (Full Gospel) in India v. K.K.R. Majestic Colony Welfare Association** (2000).
- Read: **Chintaman Rao** ("you will enjoy"), **Sodan Singh**, **Excel Wear**, **TMA Pai through Islamic Academy**, and the **Bihar liquor ban** case.
- Revise the **six points of Article 19** and the **four-part test**; Article 20 is next.

Classroom colour

- *He promised a **chocolate** for good answers (not the 5-rupee kind: "I will bring the 1-rupee one"), and the class said he had twice promised and never brought one.*
- *Note on sources: the recording is a Hindi-English speech-to-text transcript. Where it was garbled I used the closest sensible reading; items marked [added] are not from the recording, so check them before quoting in an exam or assignment.*